

What Child Care Providers Need to Know about Reporting Abuse & Neglect

Question: Am I required to make a report if I suspect a child has been abused or neglected?

Answer: Yes. In Texas, any adult who suspects a child has been abused or neglected is required by law to report their suspicions to the proper authorities. In addition to the legal requirement, child care providers have an ethical responsibility to report suspicions of abuse and neglect in order to keep children safe.



Question: What if I think a child might have been abused, but I'm not sure?

Answer: This is a “better safe than sorry” situation. If you suspect that a child has been abused, it is better to make the report and find out you were wrong, than to fail to report and risk the child being seriously injured. Child Protective Services (CPS) is responsible for investigating to see if the child is really at risk. It's your job to report, not to investigate. Waiting for more proof could leave the child in unsafe circumstances even longer. The worst-case scenario would be if a child is seriously injured or dies from abuse. In some cases where you should have been reasonably aware of the abuse, you could be legally liable.

Question: If I suspect a specific person is abusing a child, will that person find out I'm the one who made the report?

Answer: Texas has a policy of confidentiality when it comes to filing reports of suspected abuse and neglect. This means the person accused will usually not find out who made the report. CPS will, in some cases, let the person know that someone from the child care program reported. You can report anonymously by using the DFPS child abuse hotline listed below, but if you want to document that you filed the report, you should use the website instead.

Question: What happens if I make a report and CPS finds that the child isn't being abused? Can the person accused in the report sue or something?

Answer: You are legally protected as long as the report is made in good faith. That means the report is made because you had legitimate concerns about the child's well-being. If, on the other hand, you knowingly make a false report, then you may be subject to criminal charges. The best way to prevent legal issues as a child care provider is to document, document, document! When you see signs that indicate a child may have been abused, speak to your program administrator about how your program documents this information.

Question: What information do I need to provide when I make a report?

Answer: You'll need to have as much information as possible, including: The child's name, and home address, a description of the child's situation, to the best of your knowledge, a description of any injuries, conditions, or behaviors that might be associated with abuse or neglect, names of the child's parents, names of the child's siblings, if any, names of other relatives in the home or those who might have knowledge of the situation, and the name of the person who abused the child, if known. You should also give an explanation of how you know about the situation as a part of your report.



Question: How do I make a report?

Answer: Have the information above handy and call the Texas Abuse Hotline at 1-800-252-5400, or use the online reporting tool at <https://www.txabusehotline.org>. If the child is in immediate danger, call the local police.

Sources:

Karageorge, K & Kendall R (2008). "The Role of Professional Child Care Providers in Preventing and Responding to Child Abuse and Neglect" retrieved from <http://www.childwelfare.gov/pubPDFs/childcare.pdf>

Texas Department of Family and Protective Services (2010). "Frequently Asked Questions About Reporting Abuse" retrieved from http://www.dfps.state.tx.us/Contact_Us/report_abuse_faqs.asp#asked

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